

DIPLOMATIC WORKING DOCUMENT — MODULAR
ANNEX

ANNEX IC

Institutional Continuity and State-to-State Commitment

Leadership-Resilient Architecture for Durable Obligation

Modular · Self-Contained · Incorporable by Reference
MOU Pertaining to PEACE (v7.0) · June 2026

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Preamble

The *Memorandum of Understanding Pertaining to PEACE* (the "MOU") constitutes an agreement between the United States of America and the Islamic Republic of Iran as sovereign states. Its purpose establishes a stable, verifiable, and durable framework for nuclear non-proliferation, maritime security, and economic normalization.

The Parties recognize that changes in administration, leadership, or political composition in either country constitute a normal feature of democratic and constitutional governance. Such changes do not alter the international legal obligations of the state. This Annex reaffirms that the MOU binds the state as a whole, not any specific leader, party, or administration, and that its core commitments survive leadership transitions unless the Parties mutually agree otherwise or follow the explicit withdrawal procedures of the MOU.

The Parties adopt this Annex without amending the MOU. It functions as an interpretive and clarifying instrument that records the shared understanding of the Parties regarding the nature and durability of their commitments.

The following principles govern the interpretation of this Annex:

- **Present-tense mutual architecture:** Each provision in this Annex functions as a feature of the shared framework, binding both Parties equally, rather than a unilateral restraint by one Party for the benefit of the other.
- **Non-recognition:** Nothing in this Annex constitutes recognition of the other Party's government, political system, or regional policies, consistent with MOU Article 1.5.
- **Framing autonomy:** Each Party describes this Annex to its own public in its own terminology; neither Party requires the other to adopt a specific label, consistent with MOU Article 1.7.
- **State continuity:** The framework architecture treats the state as a continuing legal entity. Leadership transitions constitute internal constitutional events that do not affect international obligations.

This Annex addresses the durability problem that undermined the JCPOA: a subsequent administration claimed the prior agreement was not binding. Annex IC closes that loophole by recording, as an operative part of the architecture, that the MOU binds the state, not the administration. Neither Party later claims that an election dissolves what the state signed.

Article 1 — State-to-State Obligation (Continuity of Commitments)

1.1 State Binding Nature

The obligations under the MOU and all its annexes constitute obligations of the United States of America and the Islamic Republic of Iran as continuing states under international law. A change in the head of state, head of government, foreign minister, or any other official of either Party does not terminate, suspend, modify, or otherwise alter any obligation under the MOU.

Specifically, and without limitation, the following categories of leadership change do not affect MOU obligations:

1. A presidential election and inauguration of a new president.
2. A parliamentary election and change in legislative composition or majority.
3. A change in the appointment of the Supreme Leader or any constitutional succession process.
4. A change in foreign minister, defense minister, or any cabinet-level official.
5. A change in the leadership or composition of the Majlis, the Supreme National Security Council, or the National Security Council of either Party.
6. Any referendum, constitutional amendment, or domestic political reorganization.

This provision records the Vienna Convention on the Succession of States in respect of Treaties (1978) principle that treaty obligations bind the state, not the government. The framework architecture treats the state as a continuing legal personality regardless of who occupies executive office.

1.2 No Leadership-Triggered Withdrawal

Neither Party invokes a change in its own domestic leadership, political composition, election outcome, or succession as grounds for non-performance, renegotiation, reinterpretation, or withdrawal beyond the terms expressly provided in the MOU's exit ramp (Article 8.5) or material breach provisions.

The framework architecture excludes the following arguments from constituting valid grounds for non-performance:

- A newly elected administration's claim that it did not sign the MOU and therefore is not bound.
- A claim that the MOU requires re-approval by a newly constituted legislature.
- A claim that a change in foreign policy orientation justifies non-performance.

- A claim that the MOU was signed by the prior administration and therefore lacks continuing validity.

The only valid bases for withdrawal remain those specified in the MOU: the clean-break exit ramp of Article 8.5 (30 days' written notice) or a material breach by the other Party as determined through the dispute-resolution procedures of MOU Article 7.4. Leadership change is not a breach, not an exit trigger, and not a suspension event.

1.3 Continuity of Consent

The consent of each Party to bind itself by the MOU was given by the state through its authorized representatives at the time of signature. That consent remains in full force regardless of subsequent changes in the persons holding executive, legislative, or judicial office.

The framework architecture treats the signing representatives as agents of the state, not as principals in their personal capacity. Their authority derived from the state's constitutional framework, and their signatures bound the state, not themselves. A subsequent change in the state's agent roster does not revoke the state's prior consent.

For the United States, this means the MOU binds the office of the President, not the individual who held that office at signature. For Iran, this means the MOU binds the Islamic Republic as a sovereign state, not the specific officials who executed the instrument. Both Parties acknowledge this principle as fundamental to international treaty law.

Article 2 — Institutional Independence from Leadership Changes

2.1 Standing Bodies

The following institutional bodies continue to perform their functions under the MOU regardless of changes in the personnel or political affiliation of the Parties' representatives to those bodies:

Body	Function	Leadership-Change Protection
Political & Compliance Council (PCC)	Compliance determinations, cycle-release certificates, dispute escalation	Continues in Geneva; replacement delegates take effect immediately on notification to the Joint Secretariat
IAEA (Technical Verification Authority)	Nuclear verification, inventory, dual-key monitoring, certification	Independent of either Party's leadership; operates under its own statutory authority
Permanent Court of Arbitration (PCA)	Binding arbitration for unresolved disputes	Independent international body; no Party controls its composition
Joint Secretariat (Muscat)	Administrative coordination, notification relay, contact registry	Omani-hosted; operates continuously regardless of Party political transitions
Maritime Stability Board (MSB)	Traffic coordination, maritime safety, de-confliction hotline	Advisory body in Muscat; 24/7 operations independent of political cycles
Lebanon Ceasefire Monitoring Body (LCMB)	Ceasefire monitoring, incident verification, Blue Line reporting	Technical monitoring body; continues through political transitions
Distributed Guarantor Matrix	Mediation, verification backstop, certificate counter-signature	Pakistan (primary), Oman (co-facilitator), plus endorsing states; multi-state composition insulates from bilateral leadership changes

2.2 Designation and Replacement

A Party's replacement of its PCC delegates, National Access Coordinator (NAC), MSB representatives, or other designees does not require re-approval of the MOU or any annex. Such replacements proceed through notification to the Joint Secretariat and take effect immediately.

The notification procedure operates as follows:

1. The replacing Party transmits a written notification to the Joint Secretariat identifying the outgoing and incoming representatives.
2. The Joint Secretariat confirms receipt within 24 hours and transmits the notification to all other bodies.
3. The incoming representatives assume their functions immediately upon Secretariat confirmation.
4. No other Party holds a veto over the replacement. The replacement is a sovereign internal matter of the replacing Party.

2.3 IAEA Role

The IAEA's verification authority under the MOU operates independently of any change in U.S. or Iranian leadership. The IAEA continues to issue certificates, conduct inspections, and report to the PCC without requiring reconfirmation by new administrations.

The framework architecture treats IAEA verification as a continuous technical function, not a political appointment. A new administration in either capital does not reopen IAEA access protocols, renegotiate inspection rights, or challenge the validity of IAEA certifications issued under prior administrations. The IAEA's statutory mandate under its own founding documents, combined with the MOU's verification architecture, creates a double insulation from political transition.

This provision ensures that the verification spine of the MOU — the element both Parties most need to trust — operates through an international body whose independence from either Party's political cycle is constitutionally guaranteed. The IAEA is the constant that outlasts every administration.

Article 3 — Survival of Core Obligations Beyond Termination

3.1 Core Obligations Survive Withdrawal

In the event that either Party withdraws from the MOU under Article 8.5 (clean-break withdrawal) or the MOU otherwise terminates, the following core obligations survive for a period of five years from the date of withdrawal or termination, or until superseded by a subsequent agreement, whichever occurs first:

Surviving Obligation	Source	Verification Mechanism
The prohibition on developing, producing, acquiring, purchasing, or possessing nuclear weapons	Annex NW	IAEA safeguards plus national intelligence capabilities of both Parties
The enrichment cap of 3.67% U-235 at all declared and undeclared facilities	MOU Article 3.1	IAEA continuous monitoring, isotopic sampling every 72 hours, mass spectrometry
The IAEA's access rights for verifying the enrichment cap and the absence of undeclared nuclear material	Annex O	IAEA inspection protocols, environmental sampling, satellite monitoring
The dual-key custody arrangement for any remaining HEU stockpile under Annex Y	Annex Y	Joint IAEA/U.S. key system, real-time telemetry, tamper-evident seals
The non-interdiction protocol for commercial transit through the Strait of Hormuz	Annex N	Maritime Stability Board monitoring, satellite tracking, Lloyd's of London certification

The survival period of five years provides a window for the Parties to negotiate a successor agreement or for the international community to establish alternative verification arrangements. It does not constitute permanent binding beyond the survival window absent a subsequent agreement. The clock starts on the date of withdrawal notice, not on the date of termination.

3.2 Humanitarian Firewall Survives

The humanitarian firewall protections (MOU Article 5.4 and Annex T, Article II.4) continue indefinitely, regardless of withdrawal or termination, with respect to funds already released and humanitarian trade already licensed.

Specifically, the following protections survive permanently:

- Already-released humanitarian-badged funds remain non-clawable. The framework architecture excludes any mechanism for recovering funds already disbursed for medicine, food, or medical equipment.
- Ongoing humanitarian trade licenses continue in force for their stated duration. New licenses are not issued post-termination, but existing licenses are not revoked.
- Medical isotope shipments in transit at the time of withdrawal complete their delivery. Shipments on the water are not turned back.
- The one-way firewall remains operational: humanitarian flows never reverse, even in the event of a Tier 3 hostile breach or full withdrawal.

3.3 Dispute Resolution Survives for Survival Disputes

Any dispute arising under this Article — for example, whether a core obligation has been violated after withdrawal, whether the enrichment cap still holds, or whether IAEA access is being obstructed — resolves through the dispute resolution mechanisms of the MOU (PCC consultation, PCA arbitration under Annex O, Article 6) as if the MOU were still in full force.

The dispute-resolution machinery continues to function for survival-period disputes even after the MOU otherwise terminates. The PCC convenes for survival disputes, the PCA accepts jurisdiction, and the Guarantor Matrix provides mediation. The framework architecture treats post-termination compliance monitoring as an extension of the MOU's governance structure, not as a new institution.

This provision closes the gap that would otherwise exist: if the MOU terminates, there is no body to adjudicate whether the surviving obligations are being honored. By preserving the dispute-resolution machinery for survival disputes, the architecture ensures that the five-year survival period has teeth, not just words.

Article 4 — No Unilateral Reinterpretation or Implied Termination

4.1 No Implied Termination by Leadership Change

A change in administration, the election of a new parliament, the appointment of a new Supreme Leader, or any other internal political transition does not constitute an implied termination, suspension, or revision of the MOU. The MOU remains in full force unless and until the explicit procedures of Article 8.5 are followed.

The framework architecture explicitly excludes the following arguments from constituting implied termination:

- A claim that the MOU was an "executive agreement" that expires with the executive who signed it.
- A claim that a new legislative majority voids prior international commitments.
- A claim that the MOU requires periodic reauthorization by each new administration.
- A claim that domestic political opposition to the MOU constitutes grounds for non-performance.

The MOU's entry into force under Article 12 operates through executive authority, consistent with the 1981 Algiers Accords model. That authority binds the state, not the individual. A subsequent administration inherits the obligation along with the office.

4.2 Prohibition on Political Breach Claims

A Party does not claim that the other Party has breached the MOU solely on the grounds that the other Party's government has changed its public characterization of the MOU, its domestic political framing, or its interpretation of non-technical provisions, unless such change materially contradicts a verified technical fact recorded in the Shared Digital Registry.

The framework architecture distinguishes between three categories of post-signature behavior:

1. **Permitted framing changes:** A new administration describes the MOU in different political language, emphasizes different benefits, or characterizes the same provisions differently for domestic audiences. The framing autonomy of MOU Article 1.7 protects this.
2. **Permitted policy shifts:** A new administration pursues different foreign policy priorities, establishes new bilateral relationships, or changes its regional strategy. The

MOU does not restrict sovereign foreign policy choices.

3. **Prohibited technical contradictions:** A new administration denies a verified technical fact — for example, claiming that enrichment above 3.67% did not occur when the Shared Digital Registry records it, or claiming that dual-key custody was never established when the IAEA certifies it. This constitutes a breach, not a framing difference.

The PCC determines whether a post-leadership-change statement crosses from permitted framing into prohibited technical contradiction. That determination follows the procedures of MOU Article 7.4.

4.3 Continuity of Designated Officials

Each Party maintains its designated crisis contacts, PCC representatives, and other named officials for a transitional period of at least 60 days following a change in administration, to ensure uninterrupted communication.

The transitional contact protocol operates as follows:

1. Outgoing officials remain reachable through the existing crisis contact channels for 60 days following the leadership change.
2. The Joint Secretariat tests both Parties' primary and secondary contacts on the first Monday of each month at 06:00 UTC, consistent with MOU Article 8.10.
3. A failure to maintain contact continuity for more than 30 days constitutes a Tier 1 technical dispute under MOU Article 7.3.
4. The 60-day transitional period does not delay the new administration's right to replace its designated officials under Article 2.2. Replacement and transition operate simultaneously.

This provision ensures that a leadership transition does not create a communication blackout. The 60-day overlap gives the new administration time to appoint its own team while the outgoing team remains reachable. The monthly contact test of Article 8.10 provides an early warning if the transition is not proceeding smoothly.

Article 5 — Relationship to Existing MOU Provisions

5.1 Exit Ramp Unchanged

This Annex does not amend, expand, or restrict the orderly withdrawal provisions of MOU Article 8.5 (clean-break withdrawal on 30 days' written notice) or the emergency exit ramp of Article 8.2. A Party retains the right to withdraw on the terms set forth in the MOU.

Specifically, this Annex does not:

- Lengthen the 30-day notice period for clean-break withdrawal.
- Add new conditions to the exit ramp beyond those in Article 8.5.
- Remove the \$500M exit payment cap or the no-clawback provision.
- Restrict the right to invoke force majeure under MOU Article 8.8.

The exit ramp remains exactly as specified in the MOU. This Annex only records that leadership change is not an exit trigger — it does not make exit harder or easier than the MOU already provides.

5.2 Step-Back / Earn-Back Unchanged

This Annex does not alter the tiered step-back and earn-back system of MOU Article 7.3 and Annex T. Leadership changes are not a basis for step-back.

The step-back ladder continues to address only substantive compliance violations: enrichment above the cap, access denial, inspector obstruction, material diversion, or weapons-related activity. A change in administration, public rhetoric, or domestic political framing does not trigger any tier of the step-back system.

If a new administration materially violates a technical provision — for example, by blocking IAEA inspectors or reactivating enrichment above 3.67% — that violation triggers step-back under the existing procedures of Article 7.3, not under this Annex. This Annex creates no new penalties; it only clarifies what does not constitute a penalty trigger.

5.3 Partial Success Doctrine Reinforced

The Partial Success Doctrine of MOU Article 8.9 (no single unresolved module invalidates the remainder) applies with equal force to disputes arising from leadership changes or political transitions. A dispute over one provision does not justify suspension of unrelated modules.

For example: if a new U.S. administration disputes the interpretation of the enrichment cap but continues to honor the escrow release schedule and the maritime non-interdiction

protocol, the dispute over the cap does not authorize Iran to suspend its own maritime or economic obligations. The modules are independent. Progress banks where it is made. A localized dispute stays localized.

This reinforcement is necessary because leadership transitions often produce blanket rejection of the prior administration's entire policy agenda. The Partial Success Doctrine prevents that political impulse from collapsing a carefully constructed multi-module architecture. Each module stands or falls on its own merits.

Article 6 — Political Assurance (Non-Binding, Informative)

This Article is informative only and creates no legal obligation. It records political commitments that the Parties make as a matter of domestic transparency and international courtesy.

The Parties note the following political commitments:

United States: The United States, as a matter of political commitment, transmits the MOU and its annexes to the appropriate committees of the United States Congress for informational purposes. Such transmission is not a submission for approval, ratification, or a resolution of disapproval. It constitutes a courtesy notification that respects the separation of powers without creating a congressional veto.

This transmission does not convert the MOU from an executive agreement into a treaty requiring Senate advice and consent. It does not create any procedural mechanism by which either house of Congress blocks, delays, or conditions MOU implementation. It is purely informational: Congress receives the text, the administration explains its rationale, and implementation proceeds.

Iran: The Islamic Republic of Iran similarly notifies its relevant state bodies (Majlis, Supreme National Security Council) of the MOU's terms as a matter of domestic transparency, consistent with its constitutional processes.

This notification does not create a Majlis veto over the MOU. It does not require parliamentary ratification as a condition of entry into force. It is a transparency measure that keeps the state's internal institutions informed of the state's international commitments.

Mutual: Both Parties commit to briefing their respective successor administrations on the MOU's terms during the transition period, to the extent permitted by domestic law and custom. This briefing is not a renegotiation; it is a transfer of institutional knowledge that smooths the transition and reduces the risk of accidental non-compliance by an incoming team unfamiliar with the architecture.

Article 7 — Incorporation by Reference

This Annex is incorporable into any existing or future agreement through the following adoption sentence:

"The Parties adopt Annex IC (Institutional Continuity and State-to-State Commitment) as an operative provision of this Agreement. This Annex affirms that the MOU binds the United States of America and the Islamic Republic of Iran as continuing states, that leadership changes do not alter obligations, and that core non-proliferation commitments survive termination for a period of five years."

No amendment of the parent MOU or any other annex is required for this Annex to enter into force. This Annex enters into force upon signature by both Parties or upon provisional application by exchange of diplomatic notes.

The entry-into-force mechanisms are:

1. **Signature:** Physical or electronic signature by the authorized representative of each Party, consistent with MOU Article 12.
2. **Provisional application:** Exchange of diplomatic notes confirming that each Party applies this Annex provisionally pending signature. Provisional application carries the same binding effect as signature for the duration of the provisional period.
3. **Automatic integration:** If this Annex is adopted by the incorporation sentence of paragraph 1 above, it enters into force simultaneously with the agreement that adopts it, on the terms specified in that agreement's entry-into-force provision.

The incorporation sentence operates as a self-executing adoption clause. No further act of either Party is required beyond the act that makes the adopting instrument binding. This Annex is designed to be adopted by a single sentence, keeping the incorporation process clean and avoiding the need for a separate signing ceremony.

Definitions

For the purposes of this Annex, the following terms have the meanings set out below. Terms not defined here have the meanings given in MOU Article 1.6.

Term	Meaning
"Leadership change"	Any change in the head of state, head of government, foreign minister, cabinet official, parliamentary composition, or any other domestic political transition, including but not limited to elections, appointments, successions, constitutional amendments, and referenda.
"Continuing state"	The state as a legal entity under international law, distinct from its government, administration, or leadership. The continuing state persists through leadership changes and retains all international obligations unless explicitly terminated through the procedures set out in the MOU.
"Implied termination"	A claim that the MOU terminates by operation of law or political fact without following the explicit withdrawal procedures of Article 8.5. This Annex excludes all forms of implied termination, including leadership-change claims, re-interpretation claims, and non-performance claims not grounded in material breach.
"Political breach claim"	A claim that the other Party has breached the MOU solely on the grounds of changed public characterization, domestic political framing, or interpretation of non-technical provisions, without a material contradiction of a verified technical fact recorded in the Shared Digital Registry.
"Survival period"	The five-year period following withdrawal or termination during which the core obligations of Article 3.1 remain in force, or until superseded by a subsequent agreement, whichever occurs first.
"Transitional contact period"	The 60-day period following a leadership change during which outgoing officials remain reachable through existing crisis contact channels, ensuring uninterrupted communication during the transition.
"Courtesy notification"	The transmission of the MOU and its annexes to legislative bodies for informational purposes only, without creating any procedural mechanism for blocking, delaying, or conditioning implementation. This is not ratification and does not convert an executive agreement into a treaty.

Political Pitch Matrix (Informative, Not Operative)

This Article is informative only and creates no legal obligation. It provides pre-cleared messaging for each audience, consistent with the performance-contingent messaging rule of MOU Article 1.7.

To the United States	To Iran	To Facilitators
"This Annex prevents a future administration from walking away from the deal simply because it was signed by a predecessor. The state is bound, not the individual. The exit ramp still exists — this Annex doesn't trap anyone — but it closes the 'I didn't sign it' loophole."	"This Annex protects Iran from a future U.S. administration claiming the deal is invalid. The United States as a state is bound, regardless of who sits in the Oval Office. Your rights under the MOU survive American elections."	"This Annex removes the single greatest risk to the deal's durability: a leadership change triggering collapse. The architecture now treats the state as the bound entity, not the administration. This is standard international law, made explicit."
"The exit ramp stays exactly as it is — 30 days' notice, clean break, no clawback. This Annex adds no new restrictions on withdrawal. It only records that 'my predecessor signed it' is not a valid exit argument."	"The step-back system is untouched. Leadership change triggers no penalties. Only actual compliance violations — enrichment above the cap, access denial — trigger the earn-back ladder. This Annex is about durability, not new restrictions."	"The five-year survival period for core non-proliferation obligations means that even if the deal collapses, the world gets five more years of verified enrichment cap and IAEA access. That is a permanent security dividend."
"Congress receives the text for information only. No vote, no resolution of disapproval, no procedural veto. The separation of powers is respected through transparency, not through creating a new hurdle."	"The Majlis is notified for transparency, not for ratification. The Supreme Leader's authority suffices for the state's international commitments. This is consistent with Iran's constitutional framework and international practice."	"No new institutions, no new costs, no new veto points. This Annex clarifies; it does not complicate. The three governance bodies of MOU Article 9 continue unchanged. The IAEA's role is reinforced, not altered."

Signature Block

In witness whereof, the undersigned, being duly authorized by their respective governments, have signed this Annex IC: Institutional Continuity and State-to-State Commitment.

Done at _____, this ____ day of _____, 2026, in duplicate in the English language.

For the United States of America:

Signature

Name / Title

Date

For the Islamic Republic of Iran:

Signature

Name / Title

Date

Witnessed by the Joint Secretariat (Muscat):

Signature

Date

The State Binds. Leadership Changes. The Obligation Remains.

Annex IC — Institutional Continuity and State-to-State Commitment

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